

25STCV04420 25STCV04420

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-22

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Case Number: 25STCV04420 Hearing Date: July 22, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

CASSIE ELZY

vs.

KIDDER MATHEWS INC., et al.

Case

No.: 25STCV04420

Hearing Date: July 22, 2026

Plaintiff's

motion to compel Kidder Mathews of California to comply with Plaintiff's RFPs (Set One) No. 48 is GRANTED. Production is due within 10 days of entry of order. Defendant is sanctioned, jointly and severally with counsel, \$2,800, due within 20 days of entry of order.

On 2/14/2025,

Plaintiff Cassie Elzy (Plaintiff) filed suit against Kidder Mathews Inc. and

Kidder Mathews of California (collectively, Defendants), alleging: (1) sex/pregnancy discrimination; (2) violation of the Pregnancy Disability Leave Act; (3) retaliation; (4) CFRA interference; (5) failure to provide reasonable accommodation; (6) failure to provide reasonable accommodation; (7) failure to prevent discrimination and retaliation; (8) wrongful termination; (9) failure to timely pay wages; and (10) failure to reimburse business expenses.

On

6/4/2026, Plaintiff moved to compel Defendant Kidder Mathews of California Inc. (KMCI) to comply with Plaintiff's Requests for Production (RFPs) (Set One).

Discussion

Plaintiff

seeks an order compelling KMCI to produce all outstanding documents in response to Plaintiff's RFPs (Set One), No. 48, including companywide income statements, companywide balance sheets, cash flow statements, budgets, agreements with Defendant Kidder Mathews Inc. (KMI) regarding corporate administrative charges and distributions, detail of corporate administrative and other overhead charges and distributions, consolidating and consolidated income statements, consolidating and consolidated balance sheets, audited financial statements, and any other documents evidencing Defendants' financial condition, from 2020 to the present.

In

support, Plaintiff contends: "RFP1, No. 48 seeks all documents that refer, relate, or pertain to Defendant KMCI's contention that Plaintiff was terminated because of an alleged "economic hardship." Despite representing in its discovery response that it had "conducted a diligent search and reasonable inquiry and has produced all non-privileged responsive documents in its possession, custody, and control," Defendant KMCI produced only fourteen (14) pages of cherry-picked documents limited to its Greater Los Angeles Region – a region in which Plaintiff did not even work – and Plaintiff's Irvine office. And despite representing that company-wide financial issues contributed to the reason that Plaintiff was terminated in its discovery responses and recent motion for summary judgment, Defendant KMCI has refused to produce all of the relevant financial documents for the company." (Motion, 3: 6-15.)

The

Court agrees that Defendant's production is incomplete and that documents evidencing KMCI's financial condition is directly relevant to the action.

Based

on the foregoing, Plaintiff's motion to compel KMCI to comply with Plaintiff's RFPs (Set One) No. 48 is granted. Production is due within 10 days of entry of order. Defendant is sanctioned, jointly and severally with counsel, \$2,800 (\$350/hr x 8 hr), due within 20 days of entry of order.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.